

## **CHICKASAW TRIBAL LEGISLATURE**

### **Permanent Resolution Number 20-011**

#### **Amendments to Title 2, Chapter 7, Article A of the Chickasaw Nation Code (Chickasaw Nation Ethics Commission)**

**WHEREAS,** in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

**WHEREAS,** in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

**WHEREAS,** the Chickasaw Tribal Legislature created the Chickasaw Nation Ethics Commission to make certain decisions through the passage of permanent resolution PR19-014, and

**WHEREAS,** the Tribal Legislature authorized the courts of the Chickasaw Nation to hear appeals from final decisions of the Ethics Commission, and

**WHEREAS,** the Chickasaw Tribal Legislature desires to define how such appeals are to be made.

**NOW, THEREFORE, BE IT RESOLVED,** that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 7, Article A, Section 2-701.6 of the Chickasaw Nation Code (additions and case changes are shown in red, deletions are stricken through):

#### **“SECTION 2-701.6                      APPEALS.**

A.     The **Chickasaw Nation District Court** ~~Court(s) of the Nation~~ shall have jurisdiction to hear all appeals from decisions of the Commission involving public officials, candidates for public office, **applicants for voting privileges** and employees of the Nation.

B.     Pursuant to the procedures for appeal provided by Title 5, Chapter 1, Articles B, Section 5-102.1 of the Chickasaw Nation Code, a Notice of **Intent to Appeal** ~~and or~~ **Petition for Appeal**, as defined in Title 5, Chapter 1, Article B of the Chickasaw Nation Code, shall be filed with the **District Court(s)** within thirty (30) days of the issuance of a decision of the Commission or such appeal will be barred.

C.     All appeals to the Court shall be heard *de novo*.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on June 20, 2003, by a vote of 12 ayes, 0 nays, 0 abstentions.

Wanda Blackwood Scott

Chairperson

Chickasaw Tribal Legislature

Alean McManus

Secretary

Chickasaw Tribal Legislature

Concur:

Bill Anoatubby  
Bill Anoatubby, Governor  
The Chickasaw Nation

Date:

JUN 20 2003

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**Explanation:** The Chickasaw Tribal Legislature created the Chickasaw Nation Ethics Commission through the passage of PR19-014 in March, 2002. The Resolution authorizes appeals from decisions of the Ethics Commission to be made in the courts of the Chickasaw Nation. This resolution defines how such appeals are to be made. The Supreme Court assisted in the drafting of this resolution.

**Requested By:** D. Scott Colbert, Chairman  
Court Development Ad Hoc Subcommittee

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